



POLICE DEPARTMENT

March 28, 2024

-----X
In the Matter of the Charges and Specifications :

- against - :

Police Officer Sergio Martins :

Tax Registry No. 964146 :

63 Precinct :

Case No.

2022-27211

-----X
At: Police Headquarters
One Police Plaza
New York, NY 10038

Before: Honorable Anne E. Stone
Assistant Deputy Commissioner Trials

APPEARANCES:

For the CCRB-APU: Dwayne Bentley, Esq.
Civilian Complaint Review Board
100 Church Street, 10th Floor
New York, NY 10007

For the Respondent: John Tynan, Esq.
Worth, London & Martinez, LLP
111 John Street, Suite 640
New York, NY 10038

To:

HONORABLE EDWARD A. CABAN
POLICE COMMISSIONER
ONE POLICE PLAZA
NEW YORK, NY 10038

COURTESY • PROFESSIONALISM • RESPECT

Website: <http://nyc.gov/nypd>

CHARGES AND SPECIFICATIONS

1. Police Officer Sergio Martins, on or about May 18, 2021, at approximately 2145 hours, while assigned to the 63 Precinct and on duty, in the vicinity of Northwest Corner Avenue H and East 48th Street, wrongfully used force, in that he punched § 87(2)(b) in his torso area without police necessity.

P.G. 221-02, Page 2, Prohibitions 11 and 12

USE OF FORCE

2. Police Officer Sergio Martins, on or about February 23, 2022, at approximately 1050 hours, while assigned to the 63 Precinct and on duty, in the vicinity of 100 Church Street, 10th Floor, Kings County, provided a false official statement to the Civilian Complaint Review Board, in that he denied punching § 87(2)(b)

P.G. 203-08

FALSE OR MISLEADING
STATEMENTS

REPORT AND RECOMMENDATION

The above-named member of the Department appeared before me on February 6, 2024. Respondent, through his counsel, entered a plea of Not Guilty to the subject charges. The CCRB called § 87(2)(b) and § 87(2)(b) as witnesses, and Respondent testified on his own behalf. A stenographic transcript of the trial record has been prepared, and is available for the Police Commissioner's review. Having evaluated all of the evidence in this matter, I find Respondent Not Guilty of Specification 1, and Guilty of Specification 2. I recommend that he forfeit twenty (20) vacation days.

ANALYSIS

This case arose out of a CCRB complaint made by § 87(2)(b) alleging excessive force was used against her partner, § 87(2)(b) by an officer who CCRB later determined was Respondent. Additionally, it is alleged that during his official interviews with CCRB, Respondent denied punching § 87(2)(b)

The following is a summary of facts that are not in dispute. On the evening of May 18, 2021, at approximately 2130 hours, Police Officer Randi Knepper and Sergeant Paul Mallilo from the 63 Precinct stopped the car driven by § 87(2)(b) § 87(2)(b) and her partner, § 87(2)(b) were walking by, on their way home from dinner. The couple stopped to observe the traffic stop. (Tr. 16)

After a few minutes, § 87(2)(b) stepped out of his vehicle; raised voices can be heard on Officer Knepper's body-worn camera. (CCRB Ex. 1) As the officers attempted to handcuff § 87(2)(b) a struggle ensued. § 87(2)(b) and § 87(2)(b) can be seen on CCRB's Exhibit 1 at 07:24, standing near the front of § 87(2)(b) vehicle. As § 87(2)(b) protested verbally, other people also stopped to watch the interaction. The officers requested additional units for backup. (Tr. 86; CCRB Ex. 1 at 07:24-07:27) During the tussle, the keys to § 87(2)(b) car ended up on the ground and § 87(2)(b) picked them up. (CCRB Ex. 1; Tr. 15-17, 52-53)

Respondent, Sergeant Leite, and Officer Diaz arrived in response to the "85" call for assistance. They approached the observers, including § 87(2)(b) who was yelling at the officers arresting § 87(2)(b). The officers asked them to move out of the street and onto the sidewalk, which they did. (Tr. 21, 53, 89) Sergeant Mallilo approached § 87(2)(b) because the sergeant believed he had the keys to § 87(2)(b) car and wanted to retrieve them. Respondent then attempted to place § 87(2)(b) under arrest for Obstructing Governmental Administration. (Tr. 90) Respondent and several other officers took § 87(2)(b) to the ground and handcuffed him. (Tr. 21, 54, 75, 92-93) Ultimately, it was revealed that § 87(2)(b) did not possess the car keys; § 87(2)(b) had them and she eventually gave them to an officer in a "white shirt." (Tr. 18-20, 57)

The following is a summary of the portion of the body-worn camera footage captured by Respondent's immediate supervisor, Sergeant Leite, which recorded the encounter between § 87(2)(b) and Respondent. (CCRB Ex. 2)

- 01:00-01:16: There is loud crosstalk amongst the observers who are not seen at this point. Sergeant Mallilo can be heard saying "get on the sidewalk."
- 01:58--02:10: Sergeant Leite, who had been near § 87(2)(b) runs across the street, where other officers, including Respondent (a dark-haired officer wearing a blue surgical mask), are struggling with § 87(2)(b). An unidentified officer can be heard yelling, "You know what? Cuff him up." A different voice is heard saying "grab him, grab him, grab him...let go let go," as § 87(2)(b) is forcibly taken to the ground by Respondent. Respondent and the other officers also fall.
- 02:11-02:21: Respondent's arm moves up and down in a motion on the right side of § 87(2)(b) body. At 2:13, an unidentified woman can be heard screaming in a shrill voice, "Are you fucking punching him in the head?" Respondent and § 87(2)(b) are both out of view briefly. When Respondent comes back into view, his arm moves up and down twice, in quick succession.
- 02:22-02:33: An unidentified voice can be heard saying, "Cuff him up, cuff him up, I got his arm." § 87(2)(b) is handcuffed.

CCRB's Exhibit 3 is a cell-phone video made by a bystander which offers a different view of the same interactions:

- 00:01-00:04: A woman is screaming, "§ 87(2)(b) go on the sidewalk."
- 00:26-00:31: § 87(2)(b) who is surrounded by multiple officers asks, "Why are you touching me?" Sergeant Mallilo can be heard telling § 87(2)(b) "We need the keys, we need the keys," shortly before Respondent, and the other officers begin taking § 87(2)(b) who is trying to pull away, into custody.
- 00:35-00:38: Respondent's body-worn camera is dislodged during the struggle with § 87(2)(b) and can be seen on the ground.

00:44-00:57: § 87(2)(b) and Respondent fall forward to the ground with several other officers around them. Respondent's arm moves in an up and down motion that appears to be touching § 87(2)(b) right arm. Ten seconds later, Respondent's arm moves up and down twice, in quick succession near the right side of § 87(2)(b) body.

In support of its case, CCRB called § 87(2)(b) to the stand. He testified that he and § 87(2)(b) were walking home from dinner when they stopped to watch the traffic stop because the officers were getting "rowdy" with § 87(2)(b) (Tr. 52-53) He acknowledged that he was in the street and "being loud." § 87(2)(b) explained that more officers arrived on scene and told the crowd that had formed to move to the sidewalk, which he did. (Tr. 57-58, 72) He testified that he did not see § 87(2)(b) toss his keys at anyone, nor did he ever have possession of § 87(2)(b) car keys. (Tr. 57)

§ 87(2)(b) described being "grabbed" by about six officers. He recalled repeatedly asking officers, "[W]hy are you touching me; what are you doing?" (Tr. 58, 77) § 87(2)(b) contended that none of the officers asked him for anything, nor did they say anything to him, elaborating, "[s]o nobody initially asked me to put my hands behind my back. Nobody said that I was being arrested or detained." (Tr. 77) § 87(2)(b) recalled being thrown on the ground by the officers and being punched and kicked repeatedly in various parts of his body, including his head and his chest. According to his recollection, the "beating" lasted, for several minutes. (Tr. 59-60, 76-77) § 87(2)(b) unequivocally responded, "No," when asked if he resisted the officers. (Tr. 59) At trial, he did not identify any of the officers who used force against him.

Ultimately, § 87(2)(b) was placed in handcuffs, an ambulance was called, and he was taken to the hospital. § 87(2)(b) suffered from a laceration to his head, which required stitches, and experienced pain in various parts of his body. (Tr. 58-62; CCRB Ex. 8)

§ 87(2)(b) partner, § 87(2)(b) also testified at trial. She recounted that they stopped to monitor § 87(2)(b) interaction with Officer Knepper and Sergeant Mallilo. She wanted to observe because she knew § 87(2)(b) and because of “all of the things that were currently going on in the world.” (Tr. 15) § 87(2)(b) described the officers’ behavior towards § 87(2)(b) as “aggressive.” She and § 87(2)(b) moved closer in order to record. (Tr. 17)

§ 87(2)(b) recalled the officers asking § 87(2)(b) to turn off the car, which he did, and then he “threw the keys out [of] the window.” (Tr. 17) § 87(2)(b) picked up the keys. She stated that after she had the keys, officers told them to move onto the sidewalk, which they did. (Tr. 18) § 87(2)(b) acknowledged that she and § 87(2)(b) were “yelling,” which “antagonized” the officers. (Tr. 21) She denied hearing any of the officers ask § 87(2)(b) for the car keys. (Tr. 19) § 87(2)(b) stated that the officers then “...dragged § 87(2)(b) off the sidewalk that they told him to get on, and they forcibly took him down with excessive force.” (Tr. 21) § 87(2)(b) admitted that she did not see Respondent punch § 87(2)(b) explaining “[t]here were a lot of people on top of him. I don’t know who exactly did what. . .” (Tr. 23)

Respondent, who has over seven years with the Department, and has spent his entire career in the 63 Precinct, took the stand in his own defense. He provided a markedly different account of his interaction with § 87(2)(b). He testified that on the date in question he heard Officer Knepper’s radio call that a “police officer needs assistance.” (Tr. 86) Respondent, Sergeant Leite, and Officer Diaz arrived there in “under a minute.” Respondent recalled seeing approximately two other sectors when he got there. (Tr. 87) Respondent then observed that Officer Knepper and Sergeant Mallilo had an individual in custody and noticed “[a] crowd on the

south side of the street, some individuals in the street.” He approached and asked them to step onto the sidewalk. (Tr. 88-89)

At trial, Respondent stated that Sergeant Mallilo approached § 87(2)(b) who was one of the people on the sidewalk. Respondent testified that Sergeant Mallilo then told him that, “he saw § 87(2)(b) pick up the keys -- he asked for the keys back. As he did so, § 87(2)(b) in sum and substance, refused.” (Tr. 90) Respondent explained that when he “grabbed § 87(2)(b) right arm” to place him under arrest, § 87(2)(b) “started pulling away.” (Tr. 90)

Respondent described struggling with § 87(2)(b) who “began to resist,” and recalled that approximately six other officers joined in. (Tr. 92) Respondent admitted that he forcibly took § 87(2)(b) to the ground by placing his leg in front of § 87(2)(b) in order to “prevent him from moving any further.” (Tr. 90) As he did so, Respondent, § 87(2)(b) and the other officers all fell to the ground. (Tr. 92) Respondent said he then attempted to gain control of § 87(2)(b) right arm and, “§ 87(2)(b) kept pulling [his arms] further underneath his body, underneath his chest and pulled up -- I went from his wrist area to his forearm area and tried pulling up on his arms. . .” (Tr. 101) Respondent explained that he had been trained in this maneuver, which he referred to as “grappling,” in the Police Academy. (Tr. 101, 103)

After approximately “45 seconds,” Respondent managed to handcuff § 87(2)(b) He got § 87(2)(b) to his feet, observed blood on § 87(2)(b) face, and placed him into a police vehicle to wait for an ambulance. (Tr. 93-94, 116) Respondent denied punching § 87(2)(b) in the torso, or anywhere else, while attempting to gain control and handcuff him. (Tr. 93, 106) Later on during his tour, he prepared a Threat, Resistance, and Injury Report (“TRI”) regarding the incident, listing “forcible takedown and grappling” as the actions he had taken to place § 87(2)(b) into custody. (Tr. 102)

Specification 1: Excessive Force (Punch to Torso)

CCRB is not challenging the decision to arrest § 87(2)(b). Respondent stands charged with wrongfully punching § 87(2)(b) in the torso without police necessity. While Respondent acknowledges using force to arrest § 87(2)(b), he denies punching him. The question for the Tribunal is whether, under the circumstances, the force used was reasonable. There is an ancillary question of whether Respondent punched § 87(2)(b) as specifically charged. As the Tribunal will explain below, it is not possible to discern from the video whether Respondent's strike was in fact a punch, and there is no witness who corroborates § 87(2)(b) on that question. However, based on the totality of the credible evidence, I find that Respondent struck § 87(2)(b) twice to gain control of his right arm, and that, even if those strikes were punches, the use of force was reasonable.

Patrol Guide section 221-01 sets forth that "[f]orce may be used when it is reasonable to ensure the safety of a member of the service or a third person, or otherwise protect life... or when it is reasonable to place a person in custody or to prevent escape from custody." Additionally, when determining whether the use of force was reasonable, P.G. 221-01 lists several factors to consider which include: the nature and severity of the crime, the duration of the action, whether the person is actively resisting custody, as well as, the number of officers in comparison to the number of suspects.

When reviewing the circumstances which led to the use of force, all of the witnesses testified that when officers, including Respondent, first approached § 87(2)(b) he was in the street, yelling at the officers arresting § 87(2)(b). When asked to move to the sidewalk, § 87(2)(b) complied. Video evidence of the incident supports Respondent's assertion that § 87(2)(b) was resisting being taken into custody. He can be seen strenuously pulling away from

the officers, so much so that Respondent's body-worn camera became dislodged. A woman can be heard in the videos repeatedly yelling, "§ 87(2)(b) relax!" It is clear from the video that it took approximately six police officers almost a full minute to subdue § 87(2)(b) so that he could be handcuffed. (CCRB Ex. 2 at 01:57- 02:44, CCRB Ex. 3 at 00:25- 01:04)

Specification 1 explicitly alleges that Respondent "punched" § 87(2)(b) in the torso, which Respondent denies. Respondent, however, acknowledges using force to "gain control" of § 87(2)(b) right arm in order to handcuff him. He described the force he used as "grappling", which consisted of, "[g]rabbing [§ 87(2)(b)] forearm and his elbow area, and [pulling] up." (Tr. 105)

§ 87(2)(b) testified that he was "punched" all over his body, including his head, chest, arms and legs. I believe that § 87(2)(b) felt blows to his body and head, which is consistent with the video evidence, as well as the injuries noted in his medical records. It is not surprising that § 87(2)(b) did not identify Respondent, and was not able to attribute specific actions to him, given his position, face-down on the ground with several officers on top of and surrounding him. § 87(2)(b) when asked if she saw Respondent punch § 87(2)(b) responded measuredly: "There were a lot of people on top of him. I don't know who did what..." (Tr. 23)

I have carefully reviewed the recordings of the incident in evidence, paying particular attention to the portions of the videos highlighted during the trial, and during Respondent's CCRB interviews. It appears that Respondent struck § 87(2)(b) twice in quick succession on his right arm, or the right side of his body. (CCRB Ex. 2 at 02:20-02:21, CCRB Ex. 3 at 00:56-00:57) Because of the number of officers surrounding § 87(2)(b) and the location of the cameras, it is not possible to see which part of § 87(2)(b) body is struck, nor can you clearly see whether Respondent's hand is in a fist or not.

However, in analyzing the blows in the context of this incident, I find that although punches are an escalated use of force, under these circumstances, the use of two quick punches would be reasonable. Respondent was attempting to place § 87(2)(b) who was actively resisting, by moving about and tucking his arms under his body, into handcuffs. Patrol Guide section 221-02 “defines active resisting” as, “physically evasive movements to defeat a member of the service’s attempt at control, including bracing, tensing, pushing, or verbally signaling an intention to avoid or prevent being taken into or retained in custody.” While trying to gain control of § 87(2)(b) right arm, Respondent utilized a “grappling” maneuver, as well as striking him twice on the arm or torso. Shortly after the hand strikes, Respondent was able to place § 87(2)(b) into handcuffs and get him to his feet.

Ultimately, whether Respondent hit § 87(2)(b) with a closed fist or an open hand, the use of force was a measured response to these specific circumstances, and achieved the desired outcome of gaining compliance from § 87(2)(b). The limited extent of the force supports a finding that it was not a punitive response to an individual resisting arrest. For the foregoing reasons, I find Respondent Not Guilty of Specification 1.

Specification 2: False/Misleading Statements

Respondent was interviewed on two occasions, February 23, 2022, and May 27, 2022, by the CCRB regarding this incident¹. Specification 2 alleges that during those interviews, Respondent denied punching § 87(2)(b). CCRB alleges that this denial constituted a false statement. For the reasons set forth below, I find that Respondent’s statements were misleading rather than false, as defined in the Patrol Guide.

¹ Specification 2 specifically charges that, during his February 23, 2022 interview with CCRB, Respondent denied punching § 87(2)(b). However, the Bill of Particulars supplied by the CCRB before trial references statements from both interviews, giving Respondent sufficient notice of the allegations against him.

In support of this specification, CCRB directed the Tribunal's attention to the transcripts of Respondent's interviews, which were admitted into evidence as CCRB's Exhibits 4 and 6. I carefully reviewed the transcripts in their entirety, the accompanying audio recordings (CCRB Exs. 5 & 7), as well as, the body-worn camera and cell-phone footage in evidence. I find that CCRB has proven, by a preponderance of the credible, relevant evidence, that Respondent made statements which were intended to misdirect the fact finder, and materially alter the narrative in violation of Patrol Guide section 203-08. (Now encompassed by Administrative Guide section 304-10)

During his first interview with CCRB, on February 23, 2022, which occurred remotely, almost a year after the incident, Respondent described the force he used to subdue § 87(2)(b) as "grappling." (CCRB Ex. 4 at 22) When he was asked: "Specifically, [did] you issue any compliance strikes or punches to his rib area?" Respondent answered: "No." (*Id.* at 25) Respondent was then shown a clip of CCRB's Exhibit 2, Sergeant Leite's body-worn camera footage. The investigator slowed down and paused to ask questions about an arm that appears to "punch" § 87(2)(b). The interviewer acknowledged that the face of the officer isn't visible in the clip of the video. She asked Respondent to identify the officer, which he was unable to do. (*Id.* at 31-32) After being shown a clip of the video from 02:18-02:25, Respondent stated that it did not refresh his recollection of "punching" an individual. (*Id.* at 33)

Prior to the second interview on May 27, 2022, Respondent listened to the recording of the February 23, 2023 interview and was shown CCRB's Exhibit 3, the bystander's cell-phone video. Respondent was asked, if after watching this video, his recollection of punching § 87(2)(b) had changed; Respondent stated, "No." (CCRB Ex. 6 at 7) Respondent was asked several times whether he "punched" § 87(2)(b). Each time he responded, "No." (*Id.* at 11-13)

When asked what he was doing with his arm, Respondent replied, “Trying to grab his right arm.”
(*Id.* at 11)

Patrol Guide section 211-14, “Investigations by the Civilian Complaint Review Board,” outlines the obligations for officers being interviewed by CCRB. It sets forth: “When interviewed by a Civilian Complaint Review Board investigator, or when appearing at the Civilian Complaint Review Board, as the subject of a complaint or as a witness, to an incident in connection with an official Civilian Complaint Review Board investigation, all pertinent information, facts, and observations shall be reported. All questions posed by the Civilian Complaint Review Board investigator, Board panel, or Board member in accordance with Civilian Complaint Review Board rules and regulations for the conduct of interviews shall be answered fully and truthfully.”

This Tribunal, has found that Respondent struck § 87(2)(b) twice, which is a fact pertinent to the investigation of the complaint made against him. Respondent’s repeated denial of striking § 87(2)(b) was contradicted by the video evidence and constitutes a misleading statement. Respondent, by referring to his actions as “grappling” and “grabbing,” when the recordings of the incident clearly show him striking § 87(2)(b) was attempting to misdirect the investigators and alter the narrative of the investigation in his favor. He was, in essence, attempting to minimize the scope of the force he used to subdue § 87(2)(b). I note that Respondent answered all of the questions CCRB asked him. However, his denial of punching § 87(2)(b) did not constitute the full, truthful answers required by P.G. 211-14. For the foregoing reasons, I find Respondent Guilty of Specification 2.

PENALTY

In order to determine an appropriate penalty, this Tribunal, guided by the Department's Disciplinary System Penalty Guidelines, considered all relevant facts and circumstances, including potential aggravating and mitigating factors established in the record. Respondent's employment history also was examined. See 38 RCNY § 15-07. Information from his personnel record that was considered in making this penalty recommendation is contained in an attached memorandum.

Respondent, who was appointed to the Department on July 5, 2017, and has no formal disciplinary history, has been found Guilty of providing a misleading statement during interviews with CCRB. The Disciplinary Guidelines set forth a presumptive penalty for intentionally making a misleading official statement of thirty (30) penalty days and one year dismissal probation. The mitigated penalty is the forfeiture of twenty (20) penalty days.

During summation, the CCRB recommended a penalty of twenty (20) vacation days, if Respondent was found guilty of both specifications. However, in light of the circumstances surrounding the misleading statement, I believe that a penalty of twenty (20) vacation days is appropriate to address this single specification.

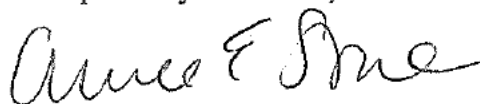
The Department, through Patrol Guide section 211-14, has emphasized the importance of officer cooperation and candor when being interviewed by CCRB; providing forthright narratives about civilian encounters, particularly those involving the use of force, to a civilian oversight entity is critical to building and maintaining public trust. Although Respondent answered all of CCRB's direct questions, he should have been more forthcoming with the investigators. He had more than one opportunity to course correct, and admit what was evident

from the videos. It is particularly concerning that Respondent wasn't more straightforward about a use of force that was reasonable under the circumstances.

In contemplating an appropriate penalty, the Tribunal considered a negotiated settlement, which was recently approved by the Police Commissioner. In that settlement, a 27-year detective, with no disciplinary history, originally charged with making a false statement, pled guilty to making a misleading statement, and forfeited twenty (20) vacation days. In that case, the detective, in spite of being presented with body-worn camera footage in which the discourteous statements could be heard, refused to acknowledge that it was his voice. The CCRB cited the chaotic nature of the scene and the detective's service record when recommending the mitigated penalty. *See Disciplinary Case 2022-25606* (Feb. 22, 2024)

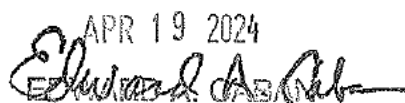
Respondent's first interview about this matter took place almost a year after the incident, and was conducted remotely. The incident itself happened quickly, in somewhat confusing circumstances, with many officers involved and ended within approximately one minute. Respondent has had no formal disciplinary history during his almost seven years with the Department, has one medal for Meritorious Police Duty, and six medals for Excellent Police Duty. Luckily, Respondent's lack of candor did not impede the investigation into this matter. Indeed, CCRB was able to move forward with their prosecution, and Respondent has been found not guilty of the underlying allegation. The penalty proposed by CCRB is fair and appropriate. It balances the serious nature of the misconduct, the confusion of the underlying incident, and Respondent's overall history with the Department. Accordingly, I recommend that Respondent forfeit twenty (20) vacation days.

Respectfully submitted,



Anne E. Stone
Assistant Deputy Commissioner Trials

APPROVED

APR 19 2024

EDWARD A. CABAN
POLICE COMMISSIONER



ERIC L. ADAMS
MAYOR

CIVILIAN COMPLAINT REVIEW BOARD
100 CHURCH STREET 10th FLOOR
NEW YORK, NEW YORK 10007 ♦ TELEPHONE (212) 912-7235
www.nyc.gov/ccrb



ARVA RICE
INTERIM CHAIR

March 27, 2024

The Honorable Edward A. Caban
Police Commissioner
New York City Police Department
One Police Plaza
New York, New York 10038

Re: Police Officer Sergio Martins (DADS #: 2022-27211)

Dear Commissioner Caban:

The above-referenced case was tried on February 6, 2024, by Administrative Prosecutor Dwayne Bentley for the New York City Civilian Complaint Review Board (hereinafter "CCRB"), pursuant to the Memorandum of Understanding between the CCRB and the New York City Police Department.

CCRB has reviewed the draft decision of Assistant Deputy Commissioner of Trials ("ADCT"), Anne E. Stone, dated March 7, 2024. We respectfully submit the following comments regarding that draft decision pursuant to *Fogel v. Board of Education*, 48 A.D.2d 925 (2d Dept. 1975).

Respondent, Police Officer Sergio Martins, was charged with the following:

1. Police Officer SERGIO MARTINS, on or about May 18, 2021, at approximately 2145, while assigned to 063 PCT and on duty, in the vicinity of Northwest Corner Avenue H and East 48th Street, wrongfully used force, in that he punched § 87(2)(b) in his torso area without police necessity.

P.G. 221-02, Page 2, Prohibitions 11 and 12

USE OF FORCE

2. Police Officer Sergio Martins, on or about February 23, 2022, at approximately 1050 hours, while assigned to the 64 Precinct and on duty, in the vicinity of 100 Church Street, 10th Floor, Kings County, provided a false official statement to the Civilian Complaint Review Board, in that he denied punching § 87(2)(b)

P.G. 203-08

FALSE OR MISLEADING STATEMENTS

The Court found Police Officer Martins not guilty of Specification One. PO Martins has been found Guilty of Specification Two with a recommended penalty of Twenty (20) vacation days.

It is respectfully requested that you reject ADCT's not Guilty findings and find PO Martins Guilty of the charges against him. Thus, CCRB requests that you find PO Martins guilty of each and every Charges and Specifications and impose the CCRB recommended penalty of Twenty (20) vacation days.

STATEMENTS OF FACTS

CCRB adopts the statements of facts articulated in ADCT Stone's Draft Decision.

ARGUMENT

Police Officer Sergio Martins

CCRB disagrees with the Court's finding that PO Martins is not guilty of Specification One (1) wrongful use of force in that he punched § 87(2)(b) in his torso. Further, CCRB disagrees with the Court's conclusion that "Ultimately, whether Respondent hit § 87(2)(b) with a closed fist or an open hand, the use of force was a measured response to these specific circumstances, and achieved the desired outcome of gaining compliance from § 87(2)(b). The limited extent of the force supports a finding that it was not a punitive response to an individual resisting arrest. For the foregoing reasons, I find Respondent Not Guilty of Specification 1." (Draft Decision, page 10.) The evidence submitted by CCRB clearly shows that PO Martins wrongfully used force when he punched § 87(2)(b) in his torso.

Under Patrol Guide Section 221-01 it states "force may be used when it is reasonable to ensure the safety of a member of service or a third person, or otherwise protect life .. or when it is reasonable to place a person in custody or to prevent escape from custody." In this case, PO Martins use of force in punching § 87(2)(b) in the torso was not reasonable, because § 87(2)(b) did not have any weapons and there were police officers on top of him.

In § 87(2)(b) testimony, the question was put to him "And approximately how many police officers were on top of you." He said "It was like eight, ten." And then § 87(2)(b) was asked "Did any police officers punch you in the head?" then § 87(2)(b) said "Yes." Next he was asked, "Did any police officers punch you in your arms? He said "Yeah". Next he was asked "Did they punch you in your chest?" and he said "Yes." (Transcript, page 59, 60). When attacked and punched by all the police officers he had no weapon and could harm no one so there was no reason for PO Martin to use force on § 87(2)(b). Therefore, PO Martins must be found guilty of Specification One and CCRB's penalty recommendation of the forfeiture of 20 vacation days should be imposed.

CONCLUSION

For all the aforementioned reasons, CCRB requests that you reject ADCT Stone's not Guilty findings and find PO Martins Guilty of the charges against him. CCRB requests that you accept these recommended penalties: 1. Forfeiture of twenty (20) vacation days for Specification One (1) to be served concurrently with the penalty of the forfeiture of twenty (20) vacation days for Specification Two (2). CCRB recommends that you impose a total penalty of a total forfeiture of twenty (20) vacation days for PO Martins.

Respectfully submitted by,

Dwayne L. Bentley

Dwayne L. Bentley

Prosecutor

NYC Civilian Complaint Review Board

Administration Prosecution Unit

Cc: John Tynan